

The U.P. Government Servants Criterion for Recruitment by Promotion Rules, 1994

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State of Uttar Pradesh - Act

The U.P. Government Servants Criterion for Recruitment by Promotion Rules, 1994

UTTAR PRADESH

India

The U.P. Government Servants Criterion for Recruitment by Promotion Rules, 1994

Rule THE-U-P-GOVERNMENT-SERVANTS-CRITERION-FOR-RECRUITMENT-BY-PROMOTION-RULES-1994 of 1994

Published on 10 October 1994

Commenced on 10 October 1994

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The U.P. Government Servants Criterion for Recruitment by Promotion Rules, 1994

Published vide Notification No. 13/34/90-Ka-1/1994, dated October, 10, 1994, U.P. Gazette, (Extraordinary), Part 4, Section (Ka), dated 10th October 1994

In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Governor is pleased to make the following rules :

1.

Short title, commencement and application.

(1)

These rules may be called the Uttar Pradesh Government Servants Criterion for Recruitment by Promotion Rules, 1994.

(2)

They shall come into force at once.

(3)

They shall apply to a recruitment by promotion to a post or service for which no consultation with the Public Service Commission is required on the principles to be followed in making promotions under the Uttar Pradesh Public Service Commission (Limitation of Functions) Regulations, 1954, as amended from time to time.

2.

Overriding effect.

- These rules shall have effect notwithstanding anything to the contrary contained in any other service rules made by the Governor under the proviso to Article 309 of the Constitution, or orders, for the time being in force.

3.

Definitions.

- Unless there is anything repugnant in the subject or context:

(a)

"Constitution" means the Constitution of India;

(b)

"Governor" means the Governor of Uttar Pradesh;

(c)

"Post" or "Service" means a post or service under the rule-making power of the Governor under the proviso to Article 309 of the Constitution.

4.

[Criterion for recruitment by promotion.

[Substituted by Notification No. 13/XXXIV/90-ka-1/98, dated 10th June, 1998, published in U.P. Gazette, Part 4, Section (ka), dated 10th June, 1998, (w.e.f. 10-6-1998).]

- Recruitment by promotion to the post of Head of Department, to a post just one rank below the Head of Department and to a post in any service carrying the pay scale the maximum of which is Rs. 18,300 or above shall be made on the basis of merit, and to the rest of the posts, in all services to be filled by promotion, including a post where promotion is made from a non-Gazetted post to a Gazetted post or from one service to another service, shall be made on the basis of seniority subject to the rejection of the unfit.]

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